

HOUSE No. 954

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act empowering vulnerable municipalities to protect residents and the environment from harmful pesticides.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/17/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>3/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/23/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>2/21/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/5/2025</i>

HOUSE No. 954

By Representative Gentile of Sudbury, a petition (accompanied by bill, House, No. 954) of Carmine Lawrence Gentile and others relative to the powers of cities and town to regulate, restrict or prohibit the use, application or disposal of certain pesticides. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act empowering vulnerable municipalities to protect residents and the environment from harmful pesticides.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The second paragraph of section 1 of chapter 132B of the General Laws, as appearing in
2 the 2022 Official Edition, is hereby amended by striking out the second sentence and inserting in
3 place thereof the following sentence:-

4 This chapter shall determine the regulation of labeling, distribution, sale, storage,
5 transportation, use and application, and disposal of pesticides in the commonwealth; provided,
6 however, that this chapter shall establish the minimum standards and restrictions relative to the
7 use and application and disposal of pesticides. Cities and towns which (a) contain sole source
8 aquifer as designated by the U. S. Environmental Protection Agency or the commonwealth of
9 Massachusetts or (b) that have a majority of residential drinking water users served by private
10 wells may, by a majority vote of the legislative body and the municipality's board of health,
11 adopt ordinances and by-laws that regulate, restrict or prohibit the outdoor, non-agricultural use

12 and application, and the disposal of all pesticides within the city or town that are more stringent
13 than the standards and restrictions established by this chapter; provided further, that for purposes
14 of this section, “use and application” and “disposal” of pesticides shall not include the
15 transportation of pesticides.